



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form L7

Application to Transfer a Care Home Tenant

(Disponible en français)

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Section A: When to use this application

You can use this application to apply to the Landlord and Tenant Board (LTB) to transfer a tenant from a care home because the tenant requires a different level of care than the care home provides.

You can apply because the tenant requires either:

- less care than the care home provides
- or**
- more care than the care home provides.

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Section B: Steps you must take before filing this application

If the tenant requires a higher level of care, the LTB will **not** issue an order to transfer the tenant out of the care home unless it is satisfied that:

- appropriate alternative accommodation is available for the tenant
- and**
- the tenant's care needs cannot be met by a combination of the care provided in the care home and the care provided by other community-based service providers.

This means you must:

- look for other appropriate alternative accommodation for the tenant,

- determine what care services are available in the community, and whether or not these services will allow the tenant to remain in the care home.

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Section C: How to complete this application

Read these instructions before completing the application form. You are responsible for ensuring that your application is correct and complete. Follow the instructions carefully when you complete the application form.

The information you fill in on the form will be read electronically; therefore, it is important to follow the instructions below:

- Print clearly or type and do not touch the edges of the boxes.
- If there are more boxes in a line than you need, start from the left and leave the extra boxes blank.
- Do not fill in boxes that do not apply to you (for example, if you do not have a fax number, do not fill in boxes in the space marked "Fax Number").
- If the instructions tell you to shade a box or a circle (for example, circles marked "Yes" or "No"), shade the box or circle completely.

Part 1: General Information

Address of the Rental Unit Covered by This Application

Fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

If the street name includes a direction that will not fit in the five spaces provided (such as Northeast) use the following abbreviations: *NE* for Northeast, *NW* for Northwest, *SE* for Southeast, *SW* for Southwest.

Example:

If the address is: #208 at 1120 Mayfield Road North, London, this is how you should complete Part 1 of the application:

Street Number										Street Name																			
1 1 2 0										M A Y F I E L D																			
Street Type (e.g. Street, Avenue, Road)										Direction (e.g. East)					Unit/Apt./Suite														
R O A D										N O R T H					2 0 8														
Municipality (City, Town, etc.)																				Prov.		Postal Code							
L O N D O N																				O N		N 6 J 2 M 1							

Landlord's Name and Address

In the *Landlord's Name and Address* section, fill in the landlord's name and address. If the landlord is a company, fill in the name of the company under "First Name". Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If there is more than one landlord, fill in information about one of the landlords in this section of Part 1. Provide the names, addresses and telephone numbers of the additional landlords on the [Schedule of Parties Form](#) which is available from the [LTB](https://tribunalsontario.ca/ltb) website at tribunalsontario.ca/ltb.

Tenant Names And Address

In the *Tenant Names and Address* section, fill in the tenant's name. If two tenants live in the rental unit, fill in both their names. If more than two tenants live in the rental unit, fill in information about two tenants in this section of Part 1. Provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Mailing Address

Fill in the tenant's mailing address **only** if it is different from the address of the rental unit. Provide the tenant's daytime and evening telephone numbers. Also provide the tenant's fax number and e-mail address if you know them.

Tenant's Representative / Substitute Decision Maker

If the tenant has a representative or if someone has the authorization to act on their behalf (for example, a substitute decision maker with power of attorney), fill in the person's name, address, daytime and evening telephone numbers and a fax and e-mail address, if you know them.

Related Applications

If you or your tenant have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Part 2: Reasons For Your Application

There are two reasons that you can make this application.

Reason 1 - The tenant does not require as much care as the care home provides.

If you are applying for this reason, shade this circle.

This reason also applies in circumstances where the tenant has repeatedly and substantially withdrawn from participation in some or all of the care services provided by the care home that are set out in the tenancy agreement, and the tenant is not receiving substantially equivalent community based services.

If you are applying for **Reason 1**, in the box, describe:

- the minimum level of care that the care home provides, and,
- why you believe the tenant requires less than this level of care, and,

If the tenant has withdrawn from some or all of the care services provided by the care home:

- which care services the tenant is not participating in, and
- how long the tenant has not been participating in these care services.

Reason 2 - The tenant requires a higher level of care than the care home can provide.

If you are applying for this reason, shade this circle.

If you are applying for **Reason 2**, in the box, describe:

- the level of care provided in the care home,
- why the tenant's needs cannot be met with this level of service,
- what care services are available from community based service providers, and
- why the tenant's needs cannot be met if care services are provided by both the care home and community service providers.

Have You Found Appropriate Alternative Accommodation For The Tenant?

You must indicate on the application whether or not appropriate alternative accommodation is available, and whether or not the tenant's care requirements can be met if both the care home and community care providers supply the tenant's care services. If you are applying for **Reason 2** and you do not provide this information, the LTB **will not** issue an order to transfer the tenant.

Shade either the **Yes** or **No** circle to indicate whether or not appropriate alternative accommodation is available for the tenant.

If you select **Yes**, in the box provided, include:

- the name and address of the facility that will provide accommodation to the tenant, and,
- details of the arrangements that have been made with the facility to transfer the tenant.

If you select **No**, the LTB **will not** issue an order to transfer the tenant unless it is satisfied that there is appropriate alternative accommodation available for the tenant.

Part 3: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the landlord's representative shade the circle marked "Representative". Then, sign the application form and fill in the date.

Request For Accommodation Or French-Language Services

The LTB wants to ensure that everyone who uses its services can ask for and receive accommodation and/or French Language services in order to be able to participate in its proceedings on an equal basis.

Shade the appropriate box or boxes on the form to indicate whether you need accommodation under the Ontario *Human Rights Code*, French-language services or both. The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

If you require accommodation under the *Human Rights Code*, explain what services you need in the space provided.

Payment Information Form

Complete this form to provide the LTB with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the LTB as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the LTB. You will need to complete the Fee Waiver Form which is available from the LTB website at tribunalsontario.ca/l7b. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the Rules of Practice page of the LTB website.

Payment Method

Shade the appropriate box to show whether you are paying by online payment, money order, certified cheque, Visa or MasterCard. You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and

application to LTBpayments@ontario.ca.

If you are filing my mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or debit card if you are filing your application by mail or courier.

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Section D: What to include when you file your application

To file this application, you must include the following:

- The completed L7 application.
- The application fee. For a list of the [LTB's](#) fees visit the [Filing and Fees webpage](#).

Your Application Will Be Refused If You Do Not Pay The Application Fee.

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Section E: How to file your application

You can file your application in one of the following ways:

1. File by Email, Pay Online

You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

2. By Mail or courier

Mail or courier your L7 application to the nearest [LTB](#) office.

To find a list of [LTB office locations](#) visit the [LTB](#) website at tribunalsontario.ca/ltb. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry (PCI) security compliance requirements, the [LTB](#) cannot accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the [LTB](#) at 1-888-332-3234 for information on how to submit payment information.

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Section F: What to do if you have any questions

You can visit the [LTB](#) website at: tribunalsontario.ca/l7b.

You can call the [LTB](#) at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the [LTB](#)'s processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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